

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ANTHONY DOWETT,

Plaintiff,

- against -

THE CITY OF NEW YORK, EDWIN PEREZ,
HARRY G. BONHOMME, JOSE M. SANTIAGO,
LILIAN ROQUE, and "JOHN DOE" # 1 & #2,

Defendants
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10CV9485(RJS)

COMPLAINT AND
DEMAND FOR JURY TRIAL

ECF CASE

Plaintiff, by his attorneys, MICHELSTEIN & ASSOCIATES, PLLC , complaining of the
defendants, alleges:

NATURE OF THE ACTION

1. This is a civil rights action to redress the defendants' violation of the rights accorded to plaintiff Anthony Dowett by the Civil Rights Act of 1871, 42 U.S.C. §1983, and by the Constitution of the United States, including the Fourth, Fifth and Fourteenth Amendments.

2. Anthony Dowett is a citizen of the United States who was lawfully present in front of 1214 Sheridan Avenue, Bronx, New York on January 21, 2010, when he was arrested on false criminal charges of Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, and Trespass, held in custody until January 22, 2010, and prosecuted on false criminal charges of Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, and Trespass. The false charges against plaintiff Anthony Dowett were dismissed on March 4, 2010. He was also lawfully present in his motor vehicle in front of 215 E. 168th Street, Bronx, New York, on November 10, 2010, when he was arrested on false criminal charges of violation of §11-4012(b) of the Administrative Code of the City New York and New York State Tax Law §1814(b), held in

custody until November 11, 2010, and prosecuted on false criminal charges of illegal possession of untaxed cigarettes. These charges against him were dismissed on November 11, 2010.

3. The defendants' actions were unlawful, and the plaintiff brings this action seeking compensatory and punitive damages.

JURISDICTION AND VENUE

4. Jurisdiction of this Court is invoked pursuant to the Constitution of the United States, 28 U.S.C. §§1331, 1343(3) and (4), 42 U.S.C. §§1983 and 1988, in that this is an action seeking to redress the violation of plaintiff Anthony Dowett's constitutional and civil rights.

5. Venue is proper in this Court pursuant to 28 U.S.C. §1391(b) and (c) in that all of the events which give rise to the claim occurred within the jurisdiction of the United States District Court for the Southern District of New York, defendants Edwin Perez, Harry G. Bonhomme, Jose M Santiago, and Lillian Roque can be found within the Southern District of New York, and defendant The City of New York is a municipal corporation located in the Southern District of New York which is subject to personal jurisdiction in the Southern District of New York.

PARTIES

6. Plaintiff Anthony Dowett is a citizen of the United States who resides in the County of Bronx, City and State of New York.

7. Defendant The City of New York is, and at all times relevant herein was, a municipal corporation created under the laws of the State of New York.

8. At all times relevant herein, defendant The City of New York maintained a police department.

9. Defendant Edwin Perez is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

10. At all times relevant herein, defendant Edwin Perez was acting within the scope of his employment by defendant The City of New York.

11. Defendant Harry G. Bonhomme is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

12. At all times relevant herein, defendant Harry G. Bonhomme was acting within the scope of his employment by defendant The City of New York.

13. Defendant Jose M. Santiago is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

14. At all times relevant herein, defendant Jose M. Santiago was acting within the scope of his employment by defendant The City of New York.

15. Defendant Lillian Roque is a natural person who, at all times relevant to this action, was employed by defendant The City of New York as a police officer.

16. At all times relevant herein, defendant Lillian Roque was acting within the scope of her employment by defendant The City of New York.

17. Defendants "John Doe" #1 and "John Doe" #2 are natural persons who, at all times relevant herein, were employed by defendant The City of New York as police officers.

18. At all times relevant herein defendants "John Doe" #1 and "John Doe" #2 were acting within the scope of their employment by defendant The City of New York.

STATEMENT OF CLAIMS

1. THE ARREST OF JANUARY 21, 2010

19. Plaintiff incorporates by reference paragraphs 1 through 18 of this complaint as though the same were set forth fully herein.

20. On January 21, 2010, plaintiff Anthony Dowett was lawfully present in front of 1214 Sheridan Avenue, Bronx, New York.

21. On January 21, 2010, in front of 1214 Sheridan Avenue, Bronx, New York, defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago seized plaintiff Anthony Dowett.

22. On January 21, 2010, in front of 1214 Sheridan Avenue, Bronx, New York, defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago detained plaintiff Anthony Dowett.

23. On January 21, 2010, in front of 1214 Sheridan Avenue, Bronx, New York, defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago searched plaintiff Anthony Dowett.

24. On January 21, 2010, in front of 1214 Sheridan Avenue, Bronx, New York, defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago arrested plaintiff Anthony Dowett on charges of Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, and Trespass, accusing the plaintiff of illegally entering the building at 1214 Sheridan Avenue, Bronx, New York.

25. Plaintiff Anthony Dowett had not entered the building at 1214 Sheridan Avenue, Bronx, New York, unlawfully.

26. Defendant Edwin Perez, defendant Harry G. Bonhomee, or defendant Jose M. Santiago thereupon handcuffed the plaintiff and placed him in a police vehicle.

27. Plaintiff Anthony Dowett was thereafter transported to the 44th Precinct, located at 2 East 169th Street, Bronx, New York, where he was imprisoned for a period of time.

28. While at the 44th Precinct, plaintiff Anthony Dowett was subjected to a strip search.

29. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago lacked a search warrant authorizing a strip search of plaintiff Anthony Dowett.

30. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago lacked a reasonable suspicion that plaintiff Anthony Dowett was concealing a weapon or contraband on his person.

31. Plaintiff Anthony Dowett was subsequently transported to Bronx Central Booking, where he continued to be imprisoned.

32. On information and belief, on January 22, 2010, defendant Edwin Perez falsely informed an Assistant District Attorney in the office of the Bronx District Attorney that plaintiff Anthony Dowett had unlawfully entered and remained in the building at 1214 Sheridan Avenue, Bronx, New York.

33. On January 22, 2010, defendant Edwin Perez instituted a criminal proceeding against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division, accusing the plaintiff of the crimes of Criminal Trespass in the Second Degree, Criminal Trespass in the Third Degree, and Trespass.

34. On January 22, 2010, plaintiff Anthony Dowett was arraigned before a judge of Bronx Supreme Court, Criminal Division, and was released on his own recognizance.

35. On March 4, 2009, the criminal charges brought by defendant Edwin Perez against plaintiff Anthony Dowett were dismissed.

2. THE ARREST OF NOVEMBER 10, 2010

36. On November 10, 2010, plaintiff Anthony Dowett was lawfully present in his parked motor vehicle in front of 214 East 168th Street, Bronx, New York.

37. On November 10, 2010, in front of 214 East 168th Street, Bronx, New York, defendants Lilian Roque, "John Doe" No. 1 and "John Doe" No. 2 seized plaintiff Anthony Dowett.

38. On November 10, 2010, in front of 214 East 168th Street, Bronx, New York, defendants Lilian Roque, "John Doe" No. 1 and "John Doe" No. 2 detained plaintiff Anthony Dowett.

39. On November 10, 2010, defendant Lillian Roque and/or defendant "John Doe" No. 1 searched plaintiff Anthony Dowett.

40. On November 10, 2010, defendant Lillian Roque, defendant "John Doe" #1 and/or defendant "John Doe" No. 2 thereupon arrested plaintiff Anthony Dowett on charges of sale of untaxed cigarettes and unlawful possession of untaxed cigarettes

41. Plaintiff Anthony Dowett had not sold untaxed cigarettes.

42. Plaintiff Anthony Dowett was not unlawfully in possession of untaxed cigarettes.

43. Plaintiff Anthony Dowett was in possession of one pack of untaxed cigarettes, which is not a violation of the provisions of the Administrative Code of the City of New York or the New York State Tax Law.

44. Upon arresting plaintiff Anthony Dowett, defendant Lillian Roque, defendant "John Doe" #1, or defendant "John Doe" #2 handcuffed the plaintiff and placed him in a police vehicle.

45. Plaintiff Anthony Dowett was then transported to the 44th Precinct, where he was imprisoned for a period of time.

46. Plaintiff Anthony Dowett subsequently was transported to Bronx Central Booking, where he continued to be imprisoned.

47. On information and belief, on November 11, 2010, defendant Lillian Roque falsely informed an Assistant District Attorney in the office of the New York County District Attorney that

plaintiff Anthony Dowett had unlawfully possessed untaxed cigarettes in violation of §1814(b) of the New York State Tax Law and §11-4012(b) of the Administrative Code of the City of New York.

48. On November 11, 2009, defendant Lillian Roque instituted a criminal proceeding against plaintiff Anthony Dowett in the Bronx Supreme Court, Criminal Division, accusing the plaintiff of unlawful possession of untaxed cigarettes in violation of §1814(b) of the New York State Tax Law and §11-4012(b) of the Administrative Code of the City of New York.

49. On November 11, 2010, plaintiff Anthony Dowett was arraigned before a judge of Bronx Supreme Court, Criminal Division, and the charges against him were dismissed.

COUNT I

50. Plaintiff incorporates by reference paragraphs 1 through 49 of this Complaint as though the same were set forth fully herein.

51. The seizure, arrest, detention and imprisonment of plaintiff Anthony Dowett on January 21, 2010, were made without any warrant or other legal process directing or authorizing his seizure, arrest, detention or imprisonment.

52. The charges upon which defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago arrested plaintiff Anthony Dowett were false.

53. The charges were made by defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago against plaintiff Anthony Dowett with knowledge that they were false.

54. Plaintiff Anthony Dowett was aware of his seizure, arrest, detention and imprisonment by defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago.

55. Plaintiff Anthony Dowett did not consent to his seizure, arrest, detention or imprisonment.

56. As a result of the foregoing, plaintiff Anthony Dowett was deprived of his liberty, was imprisoned, was greatly humiliated, was subjected to mental and physical distress, and was subjected to embarrassment and humiliation.

57. The seizure, arrest, detention and imprisonment of plaintiff Anthony Dowett on January 21, 2010, deprived him of his right to be free of unlawful searches and seizures and his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.

58. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago were acting under color of state law when they seized, detained, searched, arrested and imprisoned plaintiff Anthony Dowett on January 21, 2010.

59. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago deprived plaintiff Anthony Dowett of his rights to be free of unlawful searches and seizures, and not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation 42 U.S.C. §1983, by seizing, detaining, searching, strip searching, arresting and imprisoning plaintiff Anthony Dowett on false criminal charges.

COUNT II

60. Plaintiff incorporates by reference paragraphs 1 through 59 of this Complaint as though the same were set forth fully herein.

61. The strip search of plaintiff Anthony Dowett conducted at the 44th Precinct on January 21, 2010, deprived the plaintiff of his right to be free of unlawful searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States.

62. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago were acting under color of state law when they strip searched plaintiff Anthony Dowett or caused the plaintiff to be strip searched at the 44th Precinct.

63. Defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago deprived plaintiff Anthony Dowett of his right to be free of unlawful searches and seizures guaranteed by the Fourth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by strip searching plaintiff Anthony Dowett at the 44th Precinct.

COUNT III

64. Plaintiff incorporates by reference paragraphs 1 through 63 of this Complaint as though the same were set forth fully herein.

65. The criminal charges brought by defendant Edwin Perez against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division, on January 22, 2010, were false.

66. The criminal proceeding instituted by defendant Edwin Perez against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division, on January 22, 2010, was instituted by defendant Edwin Perez with knowledge that the charges were false.

67. The criminal proceeding instituted by defendant Edwin Perez against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division, on January 22, 2010, was instituted without probable cause to believe that the plaintiff had committed the offenses charged.

68. Defendant Edwin Perez was acting with malice when he instituted a criminal proceeding against plaintiff Anthony Dowett on January 22, 2010.

69. The criminal proceeding instituted by defendant Edwin Perez against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division, was terminated in plaintiff Anthony Dowett's favor.

70. Defendant Edwin Perez was acting under color of state law when he falsely informed an Assistant District Attorney in the office of the Bronx County District Attorney that plaintiff Anthony Dowett had unlawfully entered and remained in the building at 1214 Sheridan Avenue, Bronx, New York.

71. Defendant Edwin Perez was acting under color of state law when he instituted a criminal proceeding against plaintiff Anthony Dowett in Bronx Supreme Court, Criminal Division

72. Defendant Edwin Perez deprived plaintiff Anthony Dowett of his right not to be deprived of his liberty without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by prosecuting plaintiff Anthony Dowett on false criminal charges.

COUNT IV

73. Plaintiff incorporates by reference paragraphs 1 through 72 of this Complaint as though the same were set forth fully herein.

74. The acts of January 21 and January 22, 2010, complained of were carried out by defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago in their capacities as police officers and employees of defendant The City of New York, with all the actual and/or apparent authority attendant thereto.

75. The acts complained of were carried out by defendants Edwin Perez, Harry G. Bonhomme, and Jose M. Santiago in their capacities as police officers pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

76. Defendant The City of New York implemented, enforced, encouraged and sanctioned a policy, practice and/or custom of arresting persons on insufficient evidence in violation of the

Fourth and Fifth Amendment and the Equal Protection Clause of the Fourteenth Amendment of the Constitution of the United States.

77. The aforesaid customs, policies, usages, practices, procedures, and rules of defendant The City of New York include, but are not limited to, the following:

- (a) Defendant The City of New York failed properly to train police officers in the standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (b) Defendant The City of New York failed properly to train police officers in the circumstances under which probable cause exists for the warrantless arrest of an individual;
- (c) Defendant The City of New York failed properly to train police officers in the circumstances under which a person arrested can be subjected to a strip search;
- (d) Defendant The City of New York failed properly to train its police officers that persons arrested for misdemeanor and other minor offenses can not be subjected to strip searches in the absence of reasonable suspicion that the person is concealing a weapon or contraband;
- (e) Defendant The City of New York failed properly to supervise police officers during the performance of their duties, and more particularly during warrantless arrests;
- (f) Defendant The City of New York failed properly to monitor arrests made by its police officers to determine if its police officers were following proper standards for probable cause for the warrantless seizure and arrest of individuals consistent with the requirements of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States;
- (g) Defendant The City of New York failed to discipline police officers for making warrantless arrests where probable cause for an arrest did not exist;
- (h) Defendant The City of New York failed properly to train its police officers with respect to the elements of various crimes and offenses, including trespass and unlawful possession of untaxed cigarettes.

78. The failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers constituted deliberate indifference to the rights of persons with whom its police officers come into contact.

79. The arrest, imprisonment and prosecution of plaintiff Anthony Dowett on false criminal charges on January 21, 2010 resulted from the failure of defendant The City of New York properly to train, supervise, monitor and discipline its police officers in the standards of probable cause and the requirements for warrantless arrests, and the elements of trespass.

80. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to make warrantless arrests without probable cause.

81. Defendant The City of New York was acting under color of state law when it formulated and implemented a policy, custom or practice for police officers to conduct strip searches of individuals arrested for misdemeanors and other minor offenses.

82. Defendant The City of New York deprived plaintiff Anthony Dowett of his rights to be free of unlawful searches and seizures and not to be deprived of his liberty and property without due process of law guaranteed by the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States under color of state law, in violation of 42 U.S.C. §1983, by adopting and enforcing a policy, practice or custom of failing properly to train its police officers in the standards for making warrantless arrests and for conducting strip searches.

83. The aforesaid conduct of defendant The City of New York violated the plaintiff's rights under 42 U.S.C. §1983 and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States.